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California State University system enacts new protest rules

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As nearly 31,000 students return to campus at Sacramento State on Monday, new statewide rules will make more difficult pulling off actions like pro-Palestinian encampments, which made an indelible mark at Sac State and across the country last spring, without risking arrest and expulsion.

California State University Chancellor Mildred A. García posted online, the same week the University of California Board of Regents announced similar steps, an announcement that activities including "camping, overnight demonstrations, or overnight loitering" were banned.

Garcia said in a letter that universities "must maintain an environment where its work can be conducted without disruption."

The new regulations also aim for a practice that was a defining part of many encampments last spring, the use of masks, often keffiyehs wrapped around faces. The new regulations state that "no person, while on University Property, may wear a mask, personal disguise, or otherwise conceal their identity with the intent of intimidating and harassing any person or group..."

Sac State President Luke Wood walked a tightrope as he navigated a 10-day-encampment in May. After Wood and the university announced new policies around investments, protesters agreed to voluntarily end the encampment. Students claimed victory, saying that the university had divested from Israel. The university said it had not, rather that it was reiterating its commitment to human rights and that it would explore its investments.

Through a spokeswoman, Wood declined a request for an interview about how Sac State would adopt the new policies and how the university would handle protests this year.

Spokeswoman Lanaya Lewis said in an email: "The new policy is a CSU systemwide policy, meaning it supersedes any existing policy the 23 campuses may have. We will not be providing any comment on this topic at this time."

For the moment, the protest rules are being called interim. Each campus has a chance to draw up specific interpretations of the regulations. They also do not yet apply to employees who are union represented.

Still, the new policy could face protests and legal challenges.

Anne Luna, the president of Sac State's chapter of the California Faculty Association said the new rules are "draconian and unconstitutional." The sociology professor said they would have unintended consequences including a chilling effect on unions and the rights of others to protest.

What the regulations mean

Under the new regulations, campuses are broken down into three categories: public areas, limited areas and non-public areas.

Luna pointed out that under the new protest policies, protests are banned in many areas of campus and permission must be sought where protests are permitted. And those seeking to put up "posters, signs, banners, and chalking" must obtain permission, something she said was antithetical to free speech.

"This wasn't well thought out," she said. "Student protesters played a huge role in bringing down Apartheid in South Africa and in so many other historical movements. Now CSUS has set up a system where the administration can determine what is a legitimate protest or what type of poster can be put up and where."

Luna said the CFA is discussing with legal counsel, exploring challenging the regulations.

But others welcomed the new regulations. Arik Davidyan, a Sac State biology professor from Israel, said he believed last year's encampment teetered too often toward intolerance.

"I'm someone who should have felt welcome at the encampment, an Israeli who strongly believes in Palestinian self-determination," hes said. "But I felt that my views were not welcome and I felt intimidated to walk across campus at times."

Following the Oct. 7 incursion into Israel by Hamas that killed more than 1,200 and the response by the Israeli military which has killed, according to the Gaza Health Ministry, more than 40,000 Palestinians, students set up encampments all over California, including at Sac State, to protest the war.

Protest backlash

While the encampments across the country awoke student passion and resulted in increased awareness about the plight of Palestinians - the conflict has displaced nearly 2 million people in Gaza - the tactics of the encampments also led to considerable backlash.

Upset over antisemitism and frustration that administrators could not reel in chaos on campuses led to the resignations of university presidents at Harvard, Columbia University and Sonoma State.

A California legal ruling helped accelerate the sweeping new rules. The Aug. 13 court ruling was the result of a federal lawsuit filed by Jewish students at UCLA.

In a preliminary injunction, U.S. District Judge Mark C. Scarsi ruled that UCLA had discriminated against Jewish students and had to find new remedies to deal with encampments.

"In the year 2024, in the United States of America, in the state of California, in the city of Los Angeles, Jewish students were excluded from portions of the UCLA campus because they refused to denounce their faith," Scarsi wrote.

"UCLA does not dispute this. ... Instead, UCLA claims that it has no responsibility to protect the religious freedom of its Jewish students because the exclusion was engineered by third-party protesters. But under constitutional principles, UCLA may not allow services to some students when UCLA knows that other students are excluded on religious grounds, regardless of who engineered the exclusion."

One student active with UCLA's Hillel, who asked not to be identified because she is still concerned about a volatile atmosphere on campus, and said she was glad for the court ruling and the new UC rules.

"I think reasonable voices have gotten lost," the student said. The student said she thought both sides had contributed to polarization. A video that helped lead to the court ruling had been made by someone looking for confrontation.

"I think there is so much hurt on campus and over this issue, especially among students of Middle Eastern background," she said. "I care about the Jewish state but I also care about the plight of Palestinians. The encampments were so polarizing. We need to find a way to come together."

Legislative action

Another key pressure point on UC and CSU administrators was a maneuver by the state Assembly budget committee in July to withhold $25 million in funding unless a system-wide plan to restrict encampments and volatile protests was presented.

Assemblymember Jesse Gabriel, D-Encino, told the Los Angeles Times he pushed for the carrot and stick approach to "prevent a repeat of last year's violence and chaos.."

Another pressure point has been Senate Bill 1287, which cleared several committees after being introduced in March. SB 1287 prohibits "violent, harassing, intimidating, or discriminatory conduct that creates a hostile environment on campus."

CSU administrators adopted some of the same language and concepts. SB 1287, for example, states universities in the state systems must "maintain and enforce reasonable time, place, and manner restrictions for public protests and demonstrations on campuses.

An introduction to Cal State's new regulations states that Sac State is adopting rules that determine the time, place and manner in which activities may be conducted on university property. These regulations ensure that those who participate in lawful expressive activities are protected and do not disrupt university operations or infringe on the rights of others.

Luna said one of the things she objects to about the new protest policy is that a one-size-fits-all solution doesn't apply to the entire system. Luna said that the intolerance on display at UCLA was not acceptable, but that, by and large, Sac State managed to coexist with the encampment with more of an atmosphere of tolerance.

Luna said ahead of the official announcement by the university, Wood met with her and other faculty leaders Aug. 19 to explain the coming changes and to explain that they do not, as yet, affect employees with collective bargaining agreements.

Wood won praise from both sides for listening to the concerns of protesters and Jewish students. The university opened a Jewish Life and Resource Center in May and Wood also pledged to fight Islamophobia and to have more services for Muslim students.

In a video statement after the encampment ended, Wood said: "I want to be clear about one thing we did not do: We did not sign a treaty or agreement with students to close the encampment. You sign a treaty with your enemies, not with your students. We are proud that our students expressed their concerns peacefully and in accordance with our policies."

Luna said she expected that students who took part in protests and felt empowered would start the new semester feeling deflated.

"The whole experience on our campus was one that was really energizing and very empowering for them," she said. "And I think that some of them are probably going to be feeling pretty disappointed and like the wind taken out of their sails."

Luna also predicted that the rules could ultimately lead to more protests.

"I think that some of this is going to take a while to pan out," she said. "But I think that ultimately the students involved in Gaza protests are going to find a way to protest within these rules and push back against them, perhaps to challenge them legally.

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